

Motion to Stay as to Defendants City of Cathedral City, Silvercrest Advertising and Christal F. Barrington DENIED.

Motion to Stay as to Defendant William Frank Rodriguez GRANTED. Civil proceedings against Defendant Rodriguez are STAYED. Plaintiff Lewis maintains the option to revisit the court's order regarding the stay in relation to Defendant Rodriguez's status in his criminal matter FEIN 2502319.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2509974	LEWIS VS CITY OF CATHEDRAL CITY	MOTION TO STAY AND QUASH BY SILVERCREST ADVERTISING

Tentative Ruling:

Motion to Stay Proceedings:

Silvercrest relies on *Pacers*, *supra*, 162 Cal.App.3d at 687 to advance its argument for stay. As already discussed in Defendant Rodriguez's motion to stay, in *Pacers*, the respondents had filed a civil suit against petitioners for assault and battery while the United States Attorney General sought indictments against petitioners for assault and battery as well. (*Id.*) The Court of Appeal held the petitioners did not violate discovery rules by asserting their 5th Amendment privilege against self-incrimination at depositions in the civil action (*Id.* at 688.) The court further held that the trial court abused its discretion in prohibiting defendants from testifying at trial because the order penalized defendants for asserting their 5th Amendment rights. (*Id.* at 689.) "An order staying discovery until expiration of the criminal statute of limitations would allow [respondents] to prepare their lawsuit while alleviating petitioners' difficult choice between defending either the civil or criminal case." (*Id.* at 690.) The parties agreed to waive the 5-year time limit to allow respondents any necessary time to conduct further discovery. (*Id.*)

However, the real parties in interest in *Pacers* were all individuals that could assert the privilege against self-incrimination. Here, Silvercrest is an entity, not a natural person. The privilege against self-incrimination only protects natural persons and may not be asserted by a corporation, partnership or other entity. (See *United States v. White* (1944) 322 U.S. 694, 699; *Curcio v. United States* (1977) 426 U.S. 445, 449; *Bellis v. United States* (1974) 417 U.S. 85, 100-101.) Because Silvercrest has no privilege against self-incrimination there is no basis to stay the litigation.

Defendant Silvercrest Advertising's Motion to Stay Civil Case Pending Resolution of Parallel Criminal Proceedings DENIED.

Motion to Quash 3rd Party Subpoenas:

Silvercrest also moves for an order to quash Plaintiff's subpoena to several third parties pursuant to Code of Civil Procedure sections 1987.1 and 2025.420.

In opposition, Plaintiff points out the 5th amendment privilege does not protect against the production of a person's documents possessed by third parties. Plaintiff argues the motion should be denied because Silvercrest failed to include a separate statement.

“A motion to compel (or to quash) production of documents or tangible things at a deposition must be accompanied by a separate statement setting forth the particular documents or demand at issue, the responses received, and the reasons why production should be compelled.”(Cal. Rules of Court, rule 3.1345(a).) However, a separate statement is not required “[w]hen no response has been provided to the request for discovery[.]” (*Id.* at (b).) As such, Plaintiff’s argument to deny the motion to quash is unavailing because there is no evidence of a response to the subpoena.

On the merits, Silvercrest again relies on *Pacers*. Again, *Pacers* is inapplicable because Silvercrest is not a natural person. (See *United States v. White* (1944) 322 U.S. 694, 699; *Curcio v. United States* (1973) 354 U.S. 118, 122; *Bellis v. United States* (1974) 417 U.S. 85, 100-101.) Moreover, the 5th Amendment privilege does not protect against the production of documents possessed by third parties. (*Couch v. United States* (1973) 409 U.S. 322, 323-324 [5th amendment privilege unavailable to prevent the production of evidence from another party].) “A party is privileged from producing the evidence, but not from its production.” (*Johnson v. United States* (1913) 228 U.S. 457.)

Defendant Silvercrest Advertising’s Motion to Quash Subpoenas DENIED.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2509974	LEWIS VS CITY OF CATHEDRAL CITY	MOTION FOR LEAVE TO AMEND 1ST AMENDED COMPLAINT OF CHRISTIANA LEWIS BY CHRISTIANA LEWIS

Tentative Ruling:

No Opposition filed by Defendants.

Plaintiff’s Motion for Leave to File Second Amended Complaint GRANTED. The Second Amended Complaint shall be deemed filed as of the date of this order.

Case Management Conference and OSC rescheduled from 10.26.26 to 12.01.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2603512	KOHEN VS ARIANA 63, L.P.	DEMURRER ON COMPLAINT OF MICHAEL KOHEN AS TO 1ST, 2ND, 3RD, 4TH, 5TH, 7TH, 8TH, 9TH AND 10TH CAUSES OF ACTION OF COMPLAINT BY ARIANA 63, L.P., INVESTMENT CONCEPTS, INC., ARIANA AT EL PASEO APARTMENT HOMES

Tentative Ruling: No tentative ruling.

Section 430.41 (a) states in relevant part: “Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer **in person or by telephone or by video conference** with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the